CRIMINALIZING REPORTING

Malaysia v. Malaysiakini and Steven Gan

9 October 2026

CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

Jurisdiction	Malaysia
Original report	October 2021
Dated update covered	29 March 2022
Research cutoff	9 October 2026
Historical assessment	TrialWatch grade D (original report only)

SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

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EXECUTIVE SUMMARY

LATEST VERIFIED POSITION

Company's contempt conviction left in place after review dismissal; Gan acquitted

The latest verified case-disposing event is rejection of the company's review application, not a new conviction of Gan. Payment of the original fine was reported. No subsequent reversal was verified; this does not independently establish exhaustion of every conceivable remedy.

On 29 March 2022, a seven-member Federal Court panel unanimously dismissed Mkini Dotcom's application to review its contempt conviction and RM 500,000 fine. Reporting also confirms payment of the fine. The original acquittal of editor-in-chief Steven Gan must remain distinct from the company's unsuccessful review. No later reversal was verified through the research cutoff. [2] [1]

This resolves the specific review anticipated in the October 2021 original, but should not be described as a fresh appellate trial or a personal prison sentence for Gan. TrialWatch expert Joan Barata assigned the original D grade; this update does not issue a replacement grade. [1] [3]

1. User-supplied original report, October 2021.
2. Bernama / MalaysiaNow, 29 March 2022. Malaysiakini fails in review bid to overturn...
3. The Vibes, 29 March 2022. Court rejects Malaysiakini review bid on cont...

BACKGROUND AND PROCEDURAL HISTORY

The case concerned five reader comments posted under a June 2020 Malaysiakini article about the reopening of courts. On 19 February 2021, the Federal Court found the publishing company guilty of contempt by a six-to-one majority and imposed a RM 500,000 fine; it acquitted Gan. The original followed the July 2020 merits hearing and examined the subsequent judgment. [1]

The report criticized reliance on the Evidence Act Section 114A publication presumption and the treatment of a platform's responsibility for third-party comments. It analyzed whether the procedure and penalty complied with presumption-of-innocence and free-expression standards, including necessity and proportionality. Its international-law analysis did not make Malaysia an ICCPR state party. These are attributed TrialWatch criticisms, not findings adopted in the later review ruling. [1]

The original stated that a review hearing was expected on 12 October 2021. That was an anticipated procedural date, rather than a disposition. A follow-up must therefore identify the eventual review result and not merely repeat the scheduled hearing as though it resolved the matter. [1]

KEY PROCEDURAL DATES

9 June 2020	Article and third-party comments giving rise to contempt proceedings. [1]
19 February 2021	Company convicted and fined; Gan acquitted. [1]
12 October 2021	Review date anticipated in the original, not an established decision date. [1]
3 January 2022	Malaysiakini reports review rescheduled for 29 March. [4]
29 March 2022	Federal Court unanimously dismisses company's review; fine payment reported. [2] [3]

1. User-supplied original report, October 2021.
2. Bernama / MalaysiaNow, 29 March 2022. Malaysiakini fails in review bid to overturn...
3. The Vibes, 29 March 2022. Court rejects Malaysiakini review bid on cont...
4. Malaysiakini, 3 January 2022. March 29 hearing of review against Malaysiaki...

SUBSEQUENT DEVELOPMENTS

Malaysiakini's January report recorded counsel's confirmation of a new March hearing date. The eventual March decision, rather than that announcement, provides the substantive procedural development after the original report. This sequence explains why the October 2021 scheduled date cannot serve as the endpoint of the follow-up. [4]

Contemporaneous Bernama reporting states that the review panel found no breach of natural justice warranting reopening and regarded the arguments as already considered. It also reports no costs order because the matter involved public interest. Those conclusions explain rejection of this review request; they should not be expanded into an independent finding that every criticism in the TrialWatch report was answered. [2]

The Vibes explains the restricted character of Federal Court review: it is not an ordinary appeal and does not authorize another hearing simply because a party disagrees with the result. It reports that the company complained about a lack of opportunity to address pivotal issues. The court nevertheless rejected reopening. This is an unsuccessful procedural challenge, distinct from the original substantive contempt adjudication. [3]

LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

the review dismissal leaves the practical sanction and the original majority's approach to publisher responsibility in place in this case. It does not convert attributed fair-trial concerns into established violations, nor erase them solely because the threshold for exceptional review was not met. The original judgment and the review ruling answer related but different legal questions. [1] [2] [3]

preserving the identity of the sanctioned legal person is essential. Treating the case title as proof that both respondents were convicted would incorrectly attach the company's liability to Gan. Likewise, a paid corporate fine supplies no basis for a claim that he was jailed, pardoned or released. [1]

1. User-supplied original report, October 2021.
2. Bernama / MalaysiaNow, 29 March 2022. Malaysiakini fails in review bid to overturn...
3. The Vibes, 29 March 2022. Court rejects Malaysiakini review bid on cont...
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CONCLUSION AND OUTSTANDING RECORDS

The specific review sought after the original report was dismissed on 29 March 2022. The verified position is an unreversed company conviction in the examined record and the separate original acquittal of Gan, without an assertion of unlimited legal finality. [2] [1]

RECORDS NOT VERIFIED

1. Full signed reasons for the 29 March 2022 review decision, beyond contemporaneous courtroom reporting.

2. Any later case-specific reopening, extraordinary remedy or order affecting the company conviction.

3. Any actual international filing and its outcome; neither a contemplated submission nor NGO criticism establishes one.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

1. User-supplied original report, October 2021.

2. Bernama / MalaysiaNow, 29 March 2022. Malaysiakini fails in review bid to overturn...

SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Malaysia v. Malaysiakini and Steven Gan**
TrialWatch / original report authors. October 2021.
Local PDF: malaysia-v-malaysiakini-and-steven-gan.pdf
Coverage: Historical case baseline and original assessment

2. **Malaysiakini fails in review bid to overturn contempt conviction**
Bernama / MalaysiaNow. 29 March 2022.
Read source at www.malaysianow.com
Coverage: Unanimous review dismissal; reasoning reported; fine paid; no costs.

3. **Court rejects Malaysiakini review bid on contempt verdict**
The Vibes. 29 March 2022.
Read source at www.thevibes.com
Coverage: Review's limited scope; company procedural arguments; dismissal.

4. **March 29 hearing of review against Malaysiakini contempt ruling**
Malaysiakini. 3 January 2022.
Read source at www.malaysiakini.com
Coverage: Counsel confirmation of March hearing; no outcome derived from this partial article.